ML Motor Sports Ltd
(Fibre Tec MLav Racing)

and

Aeziah Divine

PROFESSIONAL SERVICES AGREEMENT

AN AGREEMENT

Made on **22nd Nov 2024**

Between

Aeziah Divine(hereinafter called 'the Rider')

and

ML Motor Sports Ltd whose registered office is at 16 Roden Place, Dundalk, Louth Ireland (hereinafter called 'MLM')

WHEREAS;

MLM who operate and run an established racing team wish to acquire the services of the Rider as a professional racing motorcyclist, who is seeking to enter into an agreement to provide services as a professional motorcycle racer and compete in the 2025 British Talent Cup (hereinafter called 'BTC').

It is hereby agreed as follows:

In this Agreement:

references to 'this Agreement' or to any other agreements or document referred to in this Agreement mean this Agreement and includes the schedules, each of which shall have effect as if set out in this Agreement;

references to clause(s) and schedule(s) are references to clause(s) and schedule(s) of and to this Agreement and references to sub-clause(s) or paragraph(s) are unless otherwise stated references to sub-clause(s) of the clause or paragraph(s) of the schedule in which the reference appears; and

references to a 'person' include any individual company body corporate corporation state or agency of a state firm partnership joint venture association organisation or trust (in each case whether or not having separate legal personality and irrespective of the jurisdiction in or under the law of which it was incorporated or exists) and a reference to any of them shall include a reference to the others.

The headings and sub-headings are inserted for convenience only and shall not affect the construction of this Agreement.

Services

MLM appoints the Rider in the capacity of a professional motorcycle racer and the Rider agrees to perform the services as detailed within below and to comply with the instructions of MLM and to comply diligently with the terms of this Agreement.

Subject to the terms and conditions of this Agreement and in consideration of the fees MLM pays towards the running of the Rider during the term of this Agreement, the Rider shall associate exclusively with MLM in connection with the BTC Championship and shall participate in each allocated round of the 2025 British Talent Cup Championship (hereinafter called 'the Events').

The Rider shall present himself for the Events and as required by MLM in a professional and timely manner as required to carry out his duties as a professional motorcycle racer in terms of physical fitness and / or mental preparation.

The Rider shall, if requested by MLM, attend periodic physical fitness assessments throughout the period of this Agreement and shall maintain a level of physical fitness sufficient to compete successfully as a professional motorcycle racer in the Events.

The Rider shall present himself in a timely and professional manner in the MLM team nominated clothing and/or uniform at the Events throughout and any associated MLM and/or team activities during the term of this Agreement as directed by MLM.

The Rider shall attend promotional works as required by MLM during the term of this Agreement and shall act at all times in the best interests of MLM at such promotional events and at other times as requested by MLM in order to perform activities related to this Agreement.

The Rider shall be responsible for all taxes and levies and similar such statutory deductions relating to the provision of services by the Rider hereunder levied by UK and shall for the avoidance of doubt not be regarded as an employee of MLM.

The Rider is responsible for taking out, maintaining and payment for all national registrations, licences and insurances required for the provision of services hereunder.

MLM Obligations, Rights of Reservation and Restrictions

MLM will cover all running costs (including but not limited to: entries, tyres, fuel, engine and chassis material, consumable products) in all BTC events.

MLM will provide and run the 2025 BTC race machine. MLM will provide a race engine for the BTC machine, engines will always be kept in KM spec and rebuilt in accordance to factory outline.

MLM will cover crash damage up a budget of £2000.

The Rider agrees that for the term of this Agreement it shall not enter into any agreement or arrangement with any third party for the delivery of services materially similar to those detailed in this Agreement and/or carry out any activities not listed

within this Agreement which may adversely affect the performance of the services under this Agreement.

Remuneration

In consideration of the financial commitment required to compete a race season in the BTC race series, the Rider agrees to pay a retainer fee to MLM, on the agreed payment dates.

BTC Rider fee:

£35,000 plus applicable VAT

All payments plus VAT
Deposit of £3500 Jan
Followed by monthly payments of £3500 February to October

MLM shall pay all BTC entry fees, race fuel, machine, tyres & team running costs.

Rider Considerations

Personal sponsor placement:

Lower half of fairing will be available to place one large logo on per bike for riders personal sponsor. It will be riders responsibility to provide logo file to the team. Upper seat pan area will also be available for personal sponsor.

Race Suit:

It is riders responsibility to arrange race suit deals. Colour and badge layout to be confirmed before final agreement and template will be sent out from the team.

In addition the rider is permitted space for three personal sponsors on the chest area, and also one larger sponsor on the stomach area. Sponsor not to conflict with current team partners. Sponsors logo placement to be agreed with MLM prior to final production.

Helmet:

Rider is free to select a helmet brand of his choice. Design and personal sponsor logo positions is free for rider to choose.

Termination

This Agreement may be terminated at any time by MLM should MLM deem that any of the conditions and/or obligations placed of the Rider under this Agreement have been breached during the course of the Agreement and /or from date of signing through to the final of the Events.

This Agreement may be terminated at any time by mutual written consent of both parties.

MLM may, in its absolute discretion, terminate the engagement of the Rider under this Agreement or suspend the performance of the Rider services under this Agreement for any reason whatsoever, immediately upon written notice to the Rider.

Upon any termination of this Agreement the Rider shall not be entitled to any element of the fee which would have become due to the Rider post the termination date should the Agreement not have been terminated.

Upon any termination of this Agreement the Rider shall return to MLM any property provided to the Rider by MLM during to the term of the Agreement in a condition similar to that which it was originally provided to the Rider.

Liability

The Rider shall be solely responsible for all obligations of payments arising from any medical, surgical, hospital and emergency room care and assistance to the Rider unless otherwise stated herein.

MLM shall indemnify the Rider against all liabilities, costs, claims, damages and/or losses arising out of any negligent act or omission of the technicians provided by MLM to support the Rider in the Events.

The Rider shall indemnify MLM against all liabilities, costs, claims, damages and/or losses arising out of any negligent act or omission by the Rider during the performance of the services.

MLM shall have no liability to the Rider for any loss of profit, loss of contracts, loss of revenue, loss of goodwill, liability under other agreements or liability to third parties, or any indirect or consequential losses whether or not MLM knew or ought to have known that such loss would be likely to be suffered as a result of such issues.

Assignment

The Rider shall not be entitled to assign the benefit of this Agreement nor sub-contract any of its obligations under this Agreement.

Third Party Rights

Any person who is not a party to this Agreement has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this Agreement except where such right or remedy exists or is available apart from this Act.

Waiver

If MLM does not enforce strict compliance by the Rider with the terms of this Agreement, this shall not constitute a waiver by MLM of any of its rights or of the obligations or liabilities of the Rider under this Agreement.

Confidentiality

The Rider shall treat as strictly confidential (and shall not disclose) information received or obtained as a result of entering into or performing this Agreement, which relates to:

i) the negotiations relating to this Agreement;

ii) the subject matter, provisions or performance of this Agreement; or

iii) the other party or any aspect of its business or operations.

The Rider may disclose information which would otherwise be confidential if and to the extent:

a) required by the law of any jurisdiction to which the disclosure is subject, provided that the disclosing party at the other party's cost, has taken all practicable legal steps to prevent such disclosure and has where practicable consulted with the other party on the manner and timing of the disclosure;

b) disclosed to the professional advisers or auditors of the party under obligations of confidence no less stringent than those assumed by the receiving party hereunder (which the receiving party undertakes to enforce);

c) that the information has come into the public domain through no fault of that party;

d) that the other party has given prior written approval to such disclosure;

e) that the information is lawfully known to the receiving party or an affiliate of the receiving party free from requirements of confidentiality or secrecy.

The provisions of this clause will continue to apply notwithstanding termination of this Agreement.

General

This Agreement shall become effective in all respects from the date of signature of the parties and shall remain in force, unless terminated earlier in accordance with the terms of this Agreement or is renewed in accordance with the terms of this Agreement, until 30th November 2025.

This Agreement constitutes the whole agreement and understanding of the parties as to its subject matter and there are no provisions, terms, conditions or obligations, whether oral or written, express or implied, other than those contained or referred to in this Agreement.

Each party acknowledges that in entering into this Agreement, it does not do so on the basis of, and does not rely on, any representation, warranty or other provision except as expressly provided in this Agreement, and all conditions, warranties or other terms implied by statute or common law are hereby excluded to the fullest extent permitted by law.

Any amendment to this Agreement shall be in writing, signed by the Parties and expressed to be for the purpose of such amendment.

Nothing in this Agreement will create, or be deemed to create, a partnership or the relationship of employer and employee between the Parties.

Any amendment to this Agreement shall only be effective if in writing and signed by a duly authorised representative of each party.

If any provision in this Agreement shall be held to be illegal, invalid or unenforceable, in whole or in part, under any enactment or rule of law, such provision or part shall to that extent be deemed not to form part of this Agreement but the legality, validity and enforceability of the remainder of this Agreement shall not be affected.

Any notice required to be given under this Agreement shall be in writing and may be:

personally delivered or sent by email in which case it shall be deemed to have been given on delivery at the relevant address or in the case of email on transmission subject to confirmation of uninterrupted transmission by a transmission report, if it is delivered not later than 16.30 hours on any business day, or, if it is delivered later than 16.30 hours on a business day or at any time on a day which is not a business day at 09.00 hours on the next business day; or

sent by first class pre-paid post, in which case it is deemed given two business days after posting; and

in this clause ‘business day’ means a day other than Saturday or Sunday or a bank holiday and all notices shall be addressed to the respective addresses of the parties set out at the head of this Agreement.

This Agreement shall be governed by Irish law and the parties shall submit to the non-exclusive jurisdiction of the Irish courts.

Technical Specification

The team will run Honda NSF250R race motorcycles during the term of this contract, with the following specifications.

- Honda engine internals
- Honda gearboxes
- 2D Data logger
- OZ Lightweight wheels
- Brembo brakes

Execution of Agreement

THIS Agreement is made in two originals of which each party shall keep one.

WITNESS WHEREOF the parties have caused this Agreement to be executed on the day and year as noted.

SIGNED BY: EPHRAIM DIVINE

for and on behalf of **Aeziah Divine**

Dated: 22/11/2024

SIGNED BY:

for and on behalf of **ML Motor Sports Ltd**

Dated:

End